

STANDING ORDER NO. 40

Subject :- Detention of D.T.C. buses involved in accident.

I. Introductory

With a view to ensuring that police officers investigating accident cases involving D.T.C. buses, adopt a uniform policy with respect to prosecution, seizure of buses, enlarging accused on bail etc., there is urgent necessity of laying down standing instructions on the subject. The following instructions are, therefore, issued for the guidance of officers of Delhi Police, dealing with cases involving D.T.C. buses and D.T.C. employees:-

II. Status of DTC Employees

The D.T.C. being a public utility concern, its employees are public servants within the meaning of section 21 of the Indian Penal Code and as defined under Section 500 of the Delhi Municipal Corporation Act, 1957. As such they need full protection and proper assistance like other public servants.

III. Seizure of DTC Bus involved in accidents

In the event of a DTC bus, being involved in an accident, the investigating officer may take the bus into possession for successful prosecution of the case but every facility shall be provided to the representative of D.T.C. for obtaining release orders from the court concerned and for handing over the bus on 'Superdari' without delay.

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IV. Bail of accused

The D.T.C. drivers/conductors found involved in any criminal case arising out of performance of their duties should be given proper treatment by the Investigating Officer and whenever any surety or bail is required, the same may be taken from the Supdt. of D.T.C. provided he is a permanent Govt. servant and the bail amount does not exceed Rs.2000/-. Intimation regarding D.T.C. employees being involved in criminal cases, shall be sent to DTC authorities in time as per standing instructions on the subject.

V. Complaint Book

Whenever a D.T.C. bus is involved in an accident the investigating officer shall not take into possession the complaint book in routine. If it is absolutely essential to take this book into possession for purposes of investigation, prior approval of the General Manager (Transport) Delhi Transport Corporation, shall be taken.

VI. Checking noting down particulars

I.Os dealing with the accident cases u/s 279/304-A, IPC sometimes deliberately do not record the No. of driving licence, its issuing authority, place of issue, validity etc. In the absence of above information, it is difficult for DCP/Traffic to issue notice u/s 15 Motor Vehicle Act to the defaulters. Further it has also been observed that when the driving licence seizure memo is impounded u/s 15 Motor Vehicle Act by the ACP/Traffic, the I.Os are in the habit of issuing duplicate copy to the defaulting drivers. This enables the driver to drive a vehicle on roads, thereby endangering human lives and property. This practice shall stop forthwith.

VII. Seizure of badge No. of drivers

In cases of contravention of traffic rules by the driver or conductor of a D.T.C. bus, they should not be taken into custody. Instead their badge Nos., be taken into possession and D.T.C. authorities be requested to produce them if need be. However, where they (Conductor/Driver) have committed criminal offences or make traffic violations, they shall be dealt with in accordance with relevant law. Recently Chairman DTC has ordered that all drivers will carry the D/L on their person while on duty. The driving licence be punched as per instructions in case of traffic violations and spot prosecutions in addition to other measures.

VIII. Prosecutions

In case of over-loading and people travelling on the foot-board, the right person to be prosecuted is the conductor and not the driver. Besides any conductor found misbehaving with the commuters should be challaned.

IX. **Recurring
Violations-
Action
Regarding**

Names of D.T.C. drivers noticed for repeated rash and negligent driving and violating traffic rules, should be brought to the notice of DCP/Traffic who may take up the matter with the D.T.C. and Transport authorities for cancellation of their driving licences.

X. **Supersession
clause**

This S.O. supersedes previous S.O. No.40 issued vide this Hdqrs. No. 28181-380/C&T,AC-I dated 28.10.77.

Sd/-

(KANWALJIT DEOL)DCP/HQ(II)
for COMMISSIONER OF POLICE:DELHI.

No. 15620-850/C&T,AC-III, dated, Delhi the 8/3/89.